

MINDFULNESS FOR LAWYERS



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Mindfulness for Lawyers

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TABLE OF CONTENTS

Licensing

1: Introduction

2: Course Description

3: Course Learning Objectives

4: Class Policies and Structure

Assignments Week 1 - 4

Assignments Weeks 5 - 10

Assignments Weeks 11 - 14

8: Instructor Materials

- 8.1: Introduction for Instructors
- 8.2: Weeks 1 and 2 Narrative
- 8.3: Weeks 3 and 4 Narrative
- 8.4: Weeks 5 and 6 Narrative
- 8.5: Weeks 7 and 8 Narrative
- 8.6: Weeks 9 and 10 Narrative
- 8.7: Weeks 11 and 12
- 8.8: Weeks 13 and 14

Index

Glossary

Detailed Licensing

Licensing

A detailed breakdown of this resource's licensing can be found in [Back Matter/Detailed Licensing](#).

1: Introduction

Introduction to Mindful Lawyering

In recent years, lawyers and those who train and regulate them have been paying more attention to lawyer well-being. Over 30 years ago, law-faculty and psychologists also surveyed the mental well-being of law-students and found it to be abysmal. So it is as a result of those concerns that courses focused on mindful lawyering and Mindfulness among law students have begun to populate the landscape of law school course offerings.

Many of those creating these courses are involved in other kinds of legal mindfulness practice. The Mindfulness in Law Society (MILS) has chapters all over the country; They also have a law student focus that waxes and wanes as student leadership rotates and shifts. In addition to the resources offered by MILS, students and lawyers have multiple online resources to complement, enhance, or even guide formation of a mindfulness orientation.

This Mindful lawyer course material platform showcases one version of a mindfulness lawyer course offered in a law school. Those persons attracted to teaching these courses likely have a practice of their own --and indeed really need a practice to effectively teach this course. Their practice will likely inform the kind of course they want to put together, as will, of course, things such as credit hours available for a course. My imprecise survey of current courses suggests that many of these courses are for two credit hours. In addition, there are a couple of books available that could be used as a textbook, thus obviating the need for curated materials.

When developing this course, after reviewing the available resources, I chose to create an OER mindfulness course for several reasons. The first -- and the primary reason for OER materials -- is the cost factor. Second, as someone who has undertaken multiple mindfulness trainings, including trainings to teach it, I have preferences as to how to focus the course. And, I have the luxury of creating a three credit hour course which allows more freedom in course coverage and the embedding of practices for the student. Third, I like the idea that someone can take these materials and make them their own by adding things, deleting other things, shifting for material for a two credit or even one credit course, or any other adaptation.

Two things I focused on in developing this course that I should mention at the outset: First and part of the reason for it to be a twice weekly course, I want to immerse the students in in-class twice weekly practices. They will also do out of class practice, but twice-a-week in-class group practice will, I hope, really strengthen the odds that students actually incorporate this methodology into their lives and practice

Second, as I began to think about what materials to include, I became convinced that students would benefit from fewer readings, more practice, more reflection, and more discussion. I have tried my best to incorporate that belief in the materials.

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2: Course Description

THE WHY

Why a course in mindful lawyering? Perhaps the introductory quote says it best. We all benefit from strengthening the ability to bring a wandering mind back into the present moment. Nearly all aspects of law practice will be enhanced by one's ability to focus in on the task at hand. This encompasses interacting with clients, negotiating with opposing counsel, arguing to the court, plus the plethora of other lawyering activities, including legal research and document creation. In addition to enhancing one's attention-paying capacity, mindfulness practices can help a lawyer become aware of the onset of performance-crippling stress and provide techniques to help address that stress. Being able to pay attention in the present moment and to notice without judgment what is happening within and around can benefit an individual professionally and personally. This course seeks to start you on that path or strengthen and support the path that you may already be on.

Lawyer and law student distress have been a not-so-well-kept secret for decades. Fortunately, law schools have begun to address this problem, rather than viewing it as a necessary or even honorable rite of passage. For instance, law schools have incorporated wellness opportunities. They have also de-emphasized the use and misuse of alcohol as a lubricant to help students ignore the stress and distress.

A significant body of research shows that mindfulness practices are one way effectively to deal with stress. Law schools—as well as other higher education institutions—have introduced mindfulness meditation practices, trainings, and courses to give students the tools needed to handle stress in better, more productive ways. Several law schools have mindfulness centers and there are courses like this at other law schools. There are now quite a few books and on-line resources addressing law student wellness, including mindfulness, many of which we have in our library.

Thankfully, the legal profession has also moved to address the issue of lawyer stress, depression, and substance abuse. All states have lawyer assistance programs. In many states, including Massachusetts, these programs have multiple free resources to provide lawyers and law students on-going opportunities for healthier ways of stress-reduction: this includes mindfulness practices.

This course explores much of the above. It is both practical and experiential. It is also hard as it takes focus and real work nearly every day of the week. It requires intention and commitment; so, please, drop this course if you are looking for an easy elective. However, if you bring to this course the seriousness and commitment it demands (see assignment for class two/January 16th), you will develop concrete tools to help you deal with problems that will inevitably arise in your legal career. Additionally, you will encounter contemplative practices supportive of open-heartedness—which will, in turn, encourage you to be purposeful, joyful, lifelong learners in your chosen vocation as a lawyer.

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3: Course Learning Objectives

THE WHAT

Course Objectives

This course will:

- introduce multiple mindfulness techniques to students and explore how mindful practices can help students be better and more ethical lawyers;
- guide students in the practice of those techniques, both in and out of class, thus gaining familiarity, proficiency, and a level of comfort with those techniques;
- introduce the science that explains how these mindful techniques are beneficial while also examining whether some benefits have been exaggerated;
- introduce students to the multiple resources available to them both as law students and when they become lawyers.

Learning Objectives

By the end of this course, students will:

- 1) understand mindfulness concepts and be able to define mindfulness and articulate its benefits.
- 2) have explored the science behind mindfulness and its impact on cognitive and emotional functioning.
- 3) learn and practice various mindfulness techniques, such as mindful meditation, mindful breathing, mindful walking, and body scans.
- 4) establish a regular mindfulness practice that can be integrated into a daily routine and also develop resources that support a mindfulness practice.
- 5) apply mindfulness to stress management by identifying common stressors in legal education and developing skills to recognize and respond, rather than react, to stress triggers.
- 6) strengthen the capacity to be more attentive by using mindfulness techniques to improve the ability to focus, concentrate, and stay more present during class, study sessions, and while performing legal tasks.
- 7) use mindfulness techniques to improve the ability to return focus to present tasks once distracted.
- 8) learn to foster better communication and interpersonal skills critical to effective lawyering by exploring how mindfulness can improve active listening, empathy, compassion, and effective communication in legal practice.
- 9) learn how to mindfully regulate emotions and enhance resilience in challenging situations.
- 10) practice techniques to cultivate compassion and empathy, which are crucial skills for working with clients and colleagues.

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4: Class Policies and Structure

THE HOW

Preparation and Engagement with Course Content

Every class session will begin with a 20-30 minute mindfulness practice and reflective discussion before moving to the topic(s) for the day. Many class sessions will have relevant readings or video content to watch beforehand, often with a requirement of reflective writing about the material. These materials are available via a link on the syllabus. Please make every effort to access class materials sooner than right before class, in the event of technical difficulties.

As a small, experiential seminar course, its success depends on students arriving prepared to participate fully in class, through engagement in the mindfulness techniques that will be practiced during class, the brief discussions that will flow from those practices, and the class content for that day.

Daily Practice and Journal

You are required to have a mindfulness practice six days a week while in this class. For the two class days per week, the in-class mindfulness practice satisfies this requirement. On four other days during the week, you must commit to a mindfulness practice - starting with 10 minutes a day and advancing to 20 over the course of the semester. This practice will be followed by a short period of journaling. Please keep a log of your out-of-class mindfulness practice in order to have a record for yourself as well as being accountable to course requirements. (see p 5 for a sample) You are welcome to use an app or any of the external resources provided below or listed within the syllabus class assignments as a source for your daily practice.

External Resource Exploration

As set forth in Course Objective Four (p.2), an important component of this course is exploring other resources for mindfulness in the legal and non-legal community. Components of that exploration are embedded in places in the syllabus where, for instance, you are instructed to go to a website and participate in a mindfulness practice video available on that website. The online world is replete with mindfulness resources. This course prioritizes directing you to reliable, trustworthy, and free (or low cost) spots for mindfulness practices.

To achieve this objective, throughout the course you will be using external resources. Some will be introduced via class assignments (e.g., see April 3rd), others are listed below. For the latter, you must use the external resources at some point during the semester for the number of times specified. The when is up to you. Each use of the external resources can be counted as one of your daily practices.

- Mindfulness in Law Society (MILS) weekly mindfulness practice
<https://www.mindfulnessinlawsociety.org/virtual-sits>. (3xs)
- Massachusetts Lawyers Concerned for Lawyers
<https://www.lclma.org/weekly-mindfulness/> (2Xs)
- UCLA Mindfulness Awareness Research Center (1X)
<https://www.uclahealth.org/programs/uclamindful/free-guided-meditations/weekly-meditations-talks/health-and-wellness-meditations>.
- University of Miami Law School (2Xs)
https://www.miamimindfulness.org/practices/practices/sobemindful_app.html.

Professionalism and Professional Identity

At the end of law school, students do not suddenly emerge fully formed with a professional identity and the skills of behaving professionally. These are developed throughout law school. This course will explore how mindfulness can

help shape your professional identity development. Please take professionalism to heart and behave accordingly. That means that, in addition to the requirements, rules, and expectations listed above, during class time you will:

- arrive on time or, when possible, a few minutes early.
- demonstrate respect and courtesy for other class participants, including being attentive while others are speaking.
- use computers during class time only if *necessary* for *this* class.
- keep cellphone put away unless that device is being used for class material that particular day.

We will create a community agreement for class during the first week.

CLASS GUIDELINES/PROCEDURES

Attendance

The American Bar Association and this law school both have stringent attendance policies that mandate regular attendance. Law school policy provides that missing more than four classes in this course may result in involuntary withdrawal from the course.

Moreover, this seminar class is highly participatory and experiential. Much of the learning happens during the mindfulness practices that we will occur do during class, as well as during the brief discussions about the practice that will occur afterward. There is no way to make up this portion of a missed class. Therefore, attendance is particularly critical in this course. Accordingly, if a student misses three classes, they must meet with me. The student must initiate a meeting request so that the meeting occurs within a week of the third missed class.

Confidentiality

The nature of this course dictates that we will be dealing with topics and practices that intersect with your professional and personal development. Accordingly, please expect and respect that there will at times be conversations by you or your classmates that deserve and demand confidentiality. Think of this not only as being respectful to and supportive of your colleagues but also as beginning the practice of confidentiality that is central to the ethical practice of law.

Grading

The grading in this class will be based on the following:

- Class participation in mindfulness practices and class discussion/projects--30%
- Outside-of-class meditation practice with concomitant journal/practice log--30%
 - o Use the worksheet here or create (and share with classmates?) your own.
<https://morethanmindful.com/wp-content/uploads/Formal-Practice-Worksheet.pdf>
- Completion of external mindfulness resource exploration--10%
- Reflection papers 30%. Wherever the syllabus assigns a reflection paper, please bring a printed copy to class to turn in.

Important Law School and University Policies

Please review the information contained herein:

<https://www.umassd.edu/law/academics/omnibus-syllabus-language/>

Assignments Week 1 - 4

Class assignments:

Week 1

January 14th

Mindfulness practice & discussion

Review syllabus & discuss individual goals based on reflection paper(see below)

General overview of mindfulness resources & practices

We will watch together the following nine-minute video, This is Water, in class:

<https://www.youtube.com/watch?v=eC7xzavzEKY>

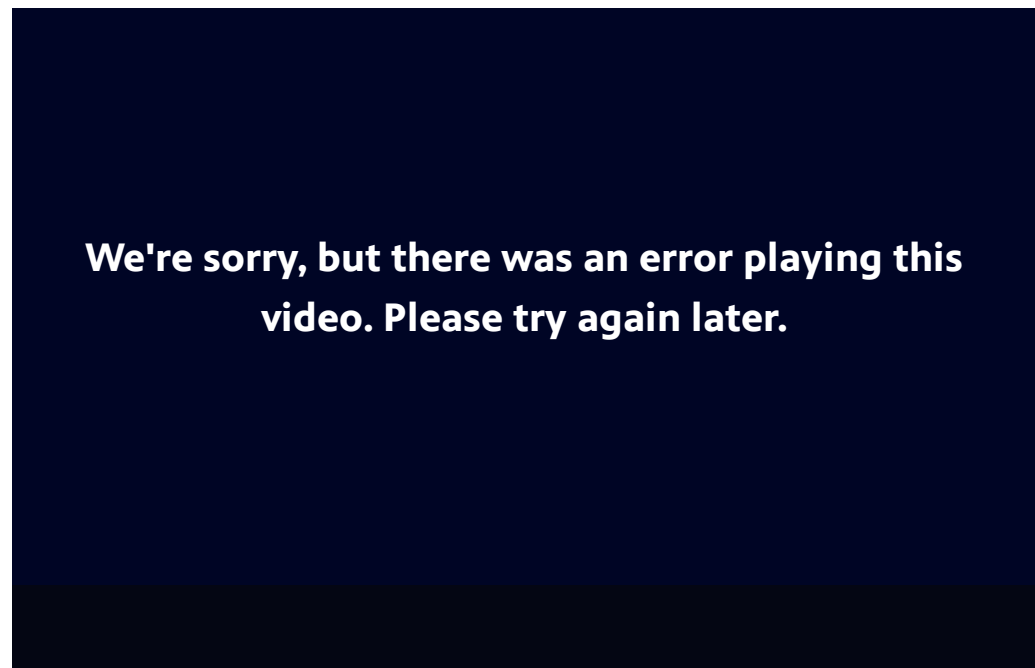
Class Assignment: Prepare reflection paper (300 - 500 words) on what you hope to get out of this course. Please include what current meditation/mindfulness practice you have, if any.

January 16th

Mindfulness practice & discussion

Develop class guidelines

Class Assignment: Watch <https://www.pbs.org/video/the-mindfulness-movement-cvc4jh/> (58 minutes long).



Prepare reflection paper (300-500 words) on what you are willing to put into this course. Please include three things you learned from the mindfulness movement video and two things from the video that you would like to follow up on or learn about.

Week 2

January 21st

Mindfulness practice & discussion

Class Assignment: Read Sections III-VI of the article: Scott, C., Mindfulness in Law: A Path to Well-Being and Balance for Lawyers and Law students (you are welcome to read the entire article of course!)

<https://arizonalawreview.org/mindfulness-in-law-a-path-to-well-being-and-balance-for-lawyers-and-law-students/>.

Read A Newbie's Impression: One Student's Mindfulness Lessons, 61 J.Legal Educ. 665(2012)-only 9 pages!

<https://jle.aals.org/cgi/viewcontent.cgi?article=1194&context=home>.

January 23rd

Mindfulness Practice & discussion

Discussion of Trauma-Sensitive Mindfulness Practice

Class Assignment: Read Tim Iglesias, Mindfulness as Resistance, 48Sw. L. Rev. 381(2019).

http://rss.swlaw.edu/sites/default/files/2019-08/10%20Iglesias_Final.pdf

To turn in, please prepare a 300-500 reflection on the mindfulness myths discussed in the article and whether there are any that you have ascribed to.

Week 3

January 28th

Mindfulness Practice & discussion

Exploring the science of mindfulness benefits

Class Assignment: Watch the first 60 minutes (good breaking point at 59:13) of the documentary My Year of Living Mindfully <https://www.kanopy.com/en/umassd/video/11239501>. We will watch the remainder together in class.

Class Assignment: Come to class with two things from the part of the documentary you viewed before class that you want to discuss in class. These can be things you liked, things you would like to challenge, or things that you just want to explore further.

January 30th

Mindfulness practice & discussion

Guest Mindfulness facilitator/speaker

Tracey Meyers, PsyD, Lawyers Concerned for Lawyers MA. Topic: Mindfulness to Calm the Nervous System

Information about Tracey from LCLMA website: "In addition to her over 25 years of neuropsychological assessment and psychotherapy experience, Tracey has a strong commitment to integrative medicine for mental health and wellness and leads mindfulness and yoga programs for groups, individuals, and professionals in the workplace."

Class Assignment: Review/try out at least three different mindfulness apps and decide on one to use for this course. Below is a relatively recent list of free apps, (please note that some are free only for a limited period of time.) Insight Timer, Calm, Headspace, and Happier are all well-known apps that I have used. It really is a matter of personal preference.

Come to class prepared to talk about the different apps you sampled and why you chose the app that you selected. After trying different apps, you may also choose not to use an app; if that's the case, please be prepared to say why! <https://www.wellandgood.com/free-meditation-apps/>.

Week 4

February 4th

Mindfulness Practice & discussion

Self-compassion

Class Assignment: watch Dan Harris 13 min.

Ted Talk https://www.ted.com/talks/dan_harris_the_benefits_of_not_being_a_jerk_to_yourself?subtitle=en

Please journal-for your eyes only-on what if anything) in his talk resonated with you and whether you are open to taking the steps he recommends.

February 6th

Mindfulness Practice & discussion

Small group sharing, reporting on experience so far

Class Assignment: prepare a 500 to 750 word reflection on how your practice has been going so far. Include one success and one challenge in the reflection.

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Assignments Weeks 5 - 10

Week 5

February 11th

Mindfulness Practice & discussion

Class Assignment: Read https://www.laurarendon.net/wp-content/uploads/2021/06/cajitas_article_kanagala_rendon.pdf.

The article will help set the context for our cajita project. While the academic focus of law students differs from that described in the article, the need for self-awareness and community is universal. In addition to reading the article, please find a box or some other container to decorate along with personal mementos, photographs, pictures, and symbols that will help you to create a response to the questions: "Why am I becoming a lawyer?", "What do I hope to do with my legal skills," and "Who and/or what drew me to the law?" In class, we will be making our own cajitas. Thus, we will be working on what is essentially a "visual art project." Working with one's hands is a different modality for many lawyers, who spend most of their professional lives and work time researching writing, and speaking. Here is your opportunity to explore something a little different. We will be spending the class in focused and contemplative silence as we construct our own personal cajitas to carry throughout the remainder of the semester.

February 13th

Mindfulness Practice & discussion

Continuation of Tuesday's assignment.

Week 6

February 18th

Mindfulness Practice & discussion

No class - Monday Schedule

February 20th

Mindfulness Practice & discussion

Self-compassion

Class Assignment: Complete the following exercise in writing. It is for your eyes only; you will not be asked to turn it in and will share parts in class only if and as you desire. <https://self-compassion.org/exercises/exercise-5-changing-your-critical-self-talk/>.

To turn in, prepare a 300-500 word exploration on ways you might incorporate self-compassion into your practice and/or daily life.

Week 7

February 25th

Mindfulness Practice & discussion

Class Assignment: Read Clark, Kicking your Action, Az Bar Journal Feb 2023

<https://www.azattorneymag-digital.com/azattorneymag/202302/MobilePagedArticle.action?articleId=1854594#articleId1854594>

To turn in, prepare a 300-500 word exploration on ways you might reduce unhelpful interactions with technology/devices.

Guest meditation facilitator: Kari Mofford



February 25th

Mindfulness Practice & discussion

Class Assignment: read National Task Force on Lawyer Well-Being: Creating a Movement to Improve Well-Being in the Legal Profession. (2017) Please focus especially on the recommendations for law schools.

<https://lawyerwellbeing.net/wp-content/uploads/2017/11/Lawyer-Wellbeing-Report.pdf>.

To turn in, prepare a reflection paper (300-500 words) on what you think the report did and did not get right. Then, using your experience at this law school so far, craft one/two of your own recommendations.

Week 8

March 6th

Mindfulness Practice & discussion

Small group sharing, reporting on so far

Class Assignment: prepare a reflection paper (500-700 words) on how your practice has been going so far. Include one success and one challenge in the reflection

Spring Break

March 10-15

Week 9

March 18th

Mindfulness Practice & discussion

Legal Education and Mindfulness

Class Assignment: Please read Tamara Kuennen, The M word, 43 Hofstra L. Rev. 325(2014)

<https://scholarlycommons.law.hofstra.edu/cgi/viewcontent.cgi?article=2787&context=hlr>

To turn in, please prepare a reflection paper(300-500 words) on whether you agree with the article that openness of mind is a special lawyering virtue and whether mindfulness can help achieve that. If you answer yes to both, please spend a little time journaling about how you think mindfulness can help you achieve an open mind.

March 20th

Mindfulness Practice & discussion

Class Assignment: Read Leonard L. Riskin, Awareness and Ethics in Dispute Resolution and Law: Why Mindfulness Tends to Foster Ethical <https://scholarship.law.ufl.edu/facultypub/634/h>

Behavior, 50 S. Tex. L. Rev. 493 (Spring 2009); NEED LINK SR Peppet, [Can Saints Negotiate-A Brief Introduction to the Problems of Perfect Ethics in Bargaining](https://scholarship.law.ufl.edu/facultypub/634/h), 7 Harvard Negotiation Law Rev. 83 (2002), available at <https://scholar.law.colorado.edu/articles/558>

Come to class prepared to discuss whether you share Peppet's concerns and why or why not.

Week 10

March 25th

Mindfulness Practice & discussion

Mindfulness & law; history/ present/ future.

Class Assignment: Magee, R. Legal Education as Contemplative Inquiry, 3 Journal of Contemplative Inquiry 8(2016) <https://digscholarship.unco.edu/joci/vol3/iss1/7>

To turn in, Please prepare a reflection paper(300-500 words) on what you think of Magee's vision of legal education.

March 27th

Mindfulness Practice & discussion

No regularly scheduled class; reserved for Make-up

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Assignments Weeks 11 - 14

Week 11

April 1st

Mindfulness practice & discussion

Mindful communication with clients

Class Assignment: read Deborah Calloway, Using Mindfulness Practice to Work with Emotions, 10 Nev. L.J. 338 (Spring 2010). You may skip/skim Section III.

<https://scholars.law.unlv.edu/cgi/viewcontent.cgi?article=1012&context=nlj>

Come to class prepared with one small thing to work on—will make sense after you have read the article!

April 3rd

Mindfulness practice & discussion

Watch and, as a part of your weekly practice, do at least two of the guided meditations at: https://www.miamimindfulness.org/practices/practices/morning_cup_of_zen.html;

Class Assignment: please prepare a reflection paper (300-500 words) on:

- 1) Which exercises you chose and why;
- 2) What the experience was like trying out the different exercises; and
- 3) Whether you will return to the website generally and those exercises in particular

Week 12

April 8th

Mindfulness practice & discussion Professional identity

Class Assignment: Watch Professor Rhonda Magee <https://www.youtube.com/watch?v=cMY2syXS2do>



To turn in, please prepare a reflection paper (300-500 words) on the ways in which mindfulness might be a part of your professional identity development.

April 10th

Mindfulness practice & discussion

Small group sharing, reporting on experience so far; discuss what has worked, what you want to leave alone (for now).

Week 13

April 15th

Mindfulness practice & discussion

Topic TBD

April 17th

Mindfulness practice & discussion

Topic TBD

Week 14

April 22nd

Mindfulness practice & discussion

Exploring practice: mindful movement. Walking meditation- walk the labyrinth on main campus

<https://www.peacelabyrinth.org/how-to-walk-the-labyrinth>

April 24th

Mindfulness practice & discussion

End-of-Semester Reflections

Class Assignment: prepare a 1500-2000 word reflection paper addressing five things you will take away from this course. More detail on this final reflection paper will be provided towards the end of the course.

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8: Instructor Materials

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8.1: Introduction for Instructors

Introduction to Mindful Lawyer Course

In recent years, lawyers and those who train and regulate them have been paying more attention to lawyer well-being. Over 30 years ago, law faculty and psychologists surveyed the mental well-being of law-students and found it to be abysmal. Continuing regional and national studies cement this as a real issue and one that needs addressing. A result of these concerns is the creation of courses focused on mindful lawyering and mindfulness among law students. While perhaps not a groundswell, one needs more than just their two hands to count the number of law schools offering courses in this realm.

Faculty creating these courses may already be involved in other kinds of legal mindfulness practice. The Mindfulness in Law Society (MILS) has chapters all over the country; it also has a law student division, which can wax and wane as student leadership rotates and shifts (or as pandemics come and go!) In addition to the resources offered by MILS, students and lawyers have multiple online resources to complement, enhance, or even guide formation of a mindfulness orientation. Further, there are now several books available that could be used as a textbook, thus obviating the need for curated materials.

This Mindful Lawyer course showcases one version of a mindfulness lawyer course offered in one law school. People attracted to teaching a similar course likely have a practice of their own --and indeed really need a practice to effectively teach this course. Their practice will likely inform the kind of course they want to put together, as will, of course, things such as credit hours available for a course.

I chose to create a three-credit-hour OER mindfulness course for several reasons. The first -- and the primary reason for OER materials generally -- is the cost factor. Second, as someone who has undertaken multiple mindfulness trainings, including trainings to teach it, I have preferences as to how to focus the course. I created a three credit-hour course to allow more freedom in course coverage and increase the time available for in-class practice. Third, I like the idea that someone can take these materials and make them their own by adding things, deleting other things, shifting for material for a two credit-hour course, or any other adaptation.

Two things I focused on in developing this course that I should mention at the outset: First, and part of the reason for the course to meet twice a week, I want to immerse the students in in-class twice weekly practices. They will also do out-of-class practice, but twice-a-week in-class group practice will, I hope, really strengthen the odds that students actually incorporate this methodology into their lives and practice.

Second, as I began to think about what materials to include, I became convinced that students would benefit from fewer readings, more practice, more reflection, and more discussion. I have tried my best to incorporate that belief in the materials, which required the continual pushing away of the notion that more equals better. A review of the material demonstrates that I succeeded in some places better than in others.

Student mindfulness practice during the course semester

Students will be required to have a mindfulness practice six days a week while in this class. For the two class days per week, students will practice mindfulness during class, with a brief time for observation and comment afterward. On at least four other days during any given week, the students will be required to do a mindfulness practice - starting with 10 minutes a day and advancing to 20 over the course of the semester. This practice will be followed by a short period of journaling. The students will need to keep a log of their mindfulness practice each week in order to keep a record for themselves as well as being accountable to course requirements. Students will be permitted, indeed encouraged, to use apps or other resources as well as be provided with journal and log entries forms to keep in long hand if they so desire. There are also on-line practices that students will be asked to sample as part of the course assignments. These are listed as links on the course syllabus. The exposure to these various sites is intended to add to the in-class practices and allow students to experience a range of mindfulness practices, as well as a range of facilitators.

At several points during the semester, class time will be devoted to how the students' mindfulness practice is developing. For this 12-person seminar, I will divide the group into three small groups to encourage sharing. I may use prompts to help the discussion begin or just let the discussions begin and flow naturally. This course may attract some students who already have a mindfulness practice and others who are novices. This range of experience will be beneficial as students with an existing practice can share their own experience(s) with their peers.

As mentioned before, a core course goal of having a three-plus-month period in which students are practicing mindfulness at least six times a week is to create enough time to for them to form a mindfulness practice habit, as well as supporting them in the early stages. Another core goal is to expose students to a variety of mindfulness practices. This exposure will come through multiple sources. In the first half of the course, the instructor will lead a variety of different mindfulness practices. Students will be encouraged to, in their out-of-classroom practice, experiment with the various practices used in class as well as using other sources. Many of these sources will be provided to the students and they will be encouraged to explore on their own. There will also be two guest facilitators during the semester.

For instance, the syllabus will guide students to websites and other on-line practices that are law-school-based mindfulness. For this course, I am requiring students to attend several live on-line practices offered by both the Mindfulness in Law Society as well as a state-based lawyer well-being on-line platform. A goal here is to be sure that students are aware of and able to access resources when they are done with this class. They will thus have the ability to continue with the mindfulness practice habit created and cultivated during the course. Many of the resources they are exposed to during the course they will be able to access throughout law school and beyond into law practice or other environments.

Class readings/videos. Students will also sample mindfulness literature –usually law professor generated. For the material used for class, whether it be written or video, students often will be required to complete personal reflections. This will help them develop the reflective muscle which, one hopes, will allow and reinforce the non-judgmental curiosity that mindfulness seeks to cultivate. This curiosity will be beneficial as they immerse themselves in a career in which judgment is often at the fore. Note here, please, that this is not to discourage students from developing good judgment as lawyers. Rather, it may help them learn the distinction between sound professional judgment and being reactively judgmental, to the detriment of their client or a situation more generally.

Guest Speakers. For a class like this, there are any number of potential guest speakers. I ended up with two. The first is affiliated with the state lawyer assistance program and is herself a mindfulness proponent and expert. She is scheduled early on, but really could come at any point in the semester. In addition to leading the practice for the day, this speaker will augment the presentation of the mindfulness neuroscience that students will also get from the two videos/documentaries that I assign early in the course. The second speaker is a library colleague who will lead a meditation to help students explore mindless relationships with technology and devices.

Open Classes. For my first iteration of the class, I have chosen to leave a couple of classes open, *i.e.*, with material for that specific class yet to be decided. In the spirit of mindful awareness and present moment living, I want to leave space for the class to develop and to allow students to suggest topics that I had not inserted into the syllabus. This also allows for spillover in case the rather tricky skill of assessing how long it will take to cover the assigned material needs some tweaking. Further, one of the open classes, which I chose to situate together towards the end of the course, could be structured as a mini-retreat in which the entirety of class time - 85 minutes - is spent doing three to five different practices. I share several other thoughts about the use of the open classes in the Weeks 13 and 14 narrative.

In-class practice. When initially developing the syllabus, I inserted the specific mindfulness practice that would be done in that particular class session. After further thought, however, I decided not to identify specific practices, simply noting the in-class practice. I like the fluidity that this gives me in choosing what practice to use in any given day. Having had several trainings on facilitating mindfulness, I am comfortable leading practices and will do so most sessions. I will plan to cover the basics: breathe, focused attention, mindful walking, body scans, mindful eating, and some form of seated mindful movement.

I know several faculty who teach these courses are certified in movement practice such as yoga or Qi Gong. I am not and accordingly want to be careful with any kind of movement practice. Essentially it will be some gentle stretching, much as I might do in any longer class session where there is no time for an official break. It is important for law students to get out of their heads and become more aware of their bodies. To further encourage this, I will also point students towards the 20 minute on-line yoga class offered weekly by the state's lawyer assistance program. This is part of the wellness focus of the program and is a good free resource for students to become familiar with and which, I hope, they will continue to use after the class is done.

Class orientation. It seemed important to me to note that this class is, as structured, very secular. That orientation feels appropriate to me but does raise several corollary issues. One, the millennia old Buddhist orientation of mindfulness is not covered in any depth. I will speak of it here and there and make clear the origins of the practice. I also will reference some giants, such as Thich Nhat Hanh, whose books are among the assigned readings in some of the mindful lawyer syllabi I have examined.

I start some practices with a bell and explain how, in some secular trainings, even that is controversial. In addition, some of the on-line guided meditations that students are encouraged and required to sample will be facilitated by Buddhist practitioners. Students will also see similar references in some of the videos and, for some classes, other monks might be referenced.

I think it is possible to run the course with more Buddhist or contemplative mystical content, even in a secular institution. And some might argue that it is inappropriate not to have more of that content, amounting to cultural appropriation. My hope is that, by acknowledging where credit is due, I avoid that. I also hope to provide and hold space for students who come with no religious background or different religious backgrounds. My goal is for the class to be and feel open to all.

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8.2: Weeks 1 and 2 Narrative

Weeks One and Two Narrative

Like any course, the first class(es) involve getting students familiar with the course, the material, and the teacher expectations. This is an OER course and, therefore, students do not have a textbook that they can review beforehand. Accordingly, it is important to get the syllabus to them before the first class with the communicated expectation that they look it over carefully in advance of the class start date. Alternatively, it may be worth having a meeting of enrolled students prior to the beginning of the semester if that is an option.

Most obviously different about this course (and what students need to know going in), is that, in addition to in-class mindfulness practices, they will be required to have a mindfulness practice four other days a week. Of course, an instructor could impose a daily practice requirement as well.

Students knowing and agreeing to this are critical to the course success. In line with that, for the second class in week one, students are asked to prepare a reflection paper on what they are willing to put into the class. Intention-setting itself can be a mindfulness practice and may enhance student performance. This follows nicely the assignment for the first class: a reflection paper on what students hope to get out of this course.

Another goal at the beginning of the semester is immediately to begin practicing mindfulness meditations and to introduce some of the more basic mindfulness practices, starting with breath meditations. It is also important for students to know from the onset that although a mindfulness practice is a requirement, they have choices about how to do individual practices. This is key for trauma-informed teaching of mindfulness: to be clear that what the teacher is offering is invitational and students should always listen and pay attention to their own bodies. Breathing meditations, for instance, are among the most common yet can be triggering for certain individuals. Also, closing one's eyes can be challenging for some folks.

Accordingly, it is important early on to emphasize that students are in charge and if something is not working for them during a mindfulness practice, then they should not do it. This can be handled lightly by giving options. By offering, for instance, when setting up a mindfulness posture, the choice of closing one's eyes or, if that does not feel right, having a downward gentle gaze that will be just as effective. For further resources on trauma-sensitive mindfulness, check out David Treleaven. He wrote the book---literally---*Trauma-Sensitive Mindfulness*. His website has a short, free webinar on the topic, plus other helpful material.

So, for the first two weeks, I have students meditating each class, writing short reflection papers on what they hope to get out of and what they are willing to honestly put into this course. In the first week, we also discuss the requirement of keeping logs and journals as a record of their mindfulness practice. To this end, I provide a link to a sample meditation log and tell students they may use this one or find or develop their own.

We will also:

- review the syllabus and answer any student questions about it,
- try out several meditation apps—I provide a link to some free options—and have an exploration of apps as a specific assignment early in the course,
- develop community guidelines for class participation, and
- read some or all of several law review articles which describe some very basic practices, an overview of the benefits of mindfulness, and a brief word on the neuroscience. We also read an essay by a law student describing her experience taking a mindful lawyer course.

I introduce much of the mindfulness science through two videos and a guest speaker. This could be sequenced in multiple ways; it is probably valuable to have at least some of that information appear early in the course. To accomplish this, students watch, as a class assignment, a 57-minute PBS video entitled *The Mindfulness Movement*. I start with this one because it is short(ish), quite informative with interviews of some of the key names in mindfulness, including Jon Kabat-Zinn, the founder of Mindfulness-Based Stress Reduction (MBSR), the catalyst for many mindfulness programs. It also presents the into-mindfulness-practice narratives of several individuals, some of whom may be recognizable to students and, if not, whose stories are fairly compelling. Further, this video hints at the science behind it, which gets fuller treatment in the documentary *My Year of Living Mindfully*, which I also have students watch in the first third of the course.

In the very first class, I showed the nine-minute video *This is Water*—available courtesy of youtube. An older, non-mindfulness explicit video, I find it a rather compelling piece on the value of choosing to pay attention, to be aware, to move from a mindless default mode into a place where one can choose how to respond. It is an adaptation of a David Foster Wallace commencement address.

Below are two less-than-three-minute animated videos on mindfulness—showing one of them may be a nice feature of your first class.

<https://www.youtube.com/watch?v=vzKryaN44ss>

<https://www.youtube.com/watch?v=w6T02g5hnT4>

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8.3: Weeks 3 and 4 Narrative

Weeks Three and Four Narrative

Weeks Three and Four continue the students' introduction to different kinds of mindfulness practices through the in-class practice. This is, of course, in addition to the variety of practices they will be experiencing as a result of their homework and at-home practice. This supports the course goal of exposing students to a wide range of different types of mindfulness practices so that they may start to determine what practices work best for them. In addition, these weeks deepen exposure to the brain science behind the efficacy of mindfulness meditation. To do this, I have chosen to have students view the 2020 documentary *My Year of Living Mindfully*. This documentary is not open source, but many institutions of higher education have purchased it so it is likely to be widely available through the university library. Also, the documentary film maker Shannon Harvey has a TED Talk that could be substituted and which is freely available online. I will say more about the value of showing this movie after the summary of these weeks. In this period, the class has its first guest speaker, who will discuss the physical benefits of meditation practice

These two weeks also feature a TED Talk by Dan Harris, entitled “the benefits of not being a jerk to yourself.” In the mindfulness field, journalist Harris is known for being a “fidgety skeptic” about mindfulness who turned to it only after a personal and professional crisis. He has written several books on the topic and created the Happier (formally 10% happier) app and podcast. His skepticism may be a valuable connector to skeptical students.

These two weeks end with the first small group discussions among students. Although this is a seminar class with capped enrollment, I will, three times over the semester, break students into groups of three-four to share how their class experience has been so far and how their home practice is going. It may be useful to consider grouping students to achieve a mix of neophytes to mindfulness with those who have had some kind of practice or exposure. In this session, I will also do a formal check-in with students on the meditation practice and log-keeping. This is an important part of the class, it would be good to have an early opportunity for correction.

My Year of Living Mindfully. This movie can be deployed in a number of ways. Its downside is its length, in addition to not being an open resource. At 138 minutes, it is likely too long to be shown in one class setting, especially because the class has a built-in mindfulness practice that will take, at a minimum, 20 minutes.

Possible solutions include showing the documentary over two classes, assigning it as homework, or a hybrid of the two. I have chosen the latter; I ask students to watch the first 60 minutes before class as a homework assignment and we watch the remainder in class. I choose this because the movie lends itself well to pausing at certain points for discussion. These discussions will deepen student engagement with the material. For the portion that students are watching at home, I ask them to identify and bring to class two points for discussion.

The documentary focuses on a journalist who wants to investigate the global well-being crisis while considering mindfulness meditation as one possible antidote. She thus embarks on a year of daily mindful meditation, with scientists examining her brain at the beginning, midpoint, and end of her year. Through this, she is testing the published data that mindfulness meditation changes the brains of experienced meditators.

Throughout the year, she lets the viewer into her experiment notes, her doubts on the validity of the project, and her discussions/interviews with her evaluators and others in the field. This makes for good viewing that should hold student attention and interest.

Most significantly for my purposes, I use this documentary as a way to expose students to the scientific study of the efficacy of mindfulness. There are lots of things that students could read on this, but this documentary contains good content delivered fairly effectively and efficiently. It also continues students' exposure to key names in the field, some of whom they already were introduced to in the *Mindfulness Movement* film that they watched in week one. Here, they see brief interviews with Kristin Neff and Dan Harris, whose materials they will explore during these two weeks. I hope that, by seeing these individuals interviewed, the students will connect more with their materials.

Students see interviews with several key scientists who study mindfulness meditation and who are part of university centers—both in the United States and abroad—where these studies are conducted. Much else from the documentary could be highlighted here; suffice it to say that I find this to be a nice overview of the science in non-scientific parlance.

The filmmaker, as part of her real time filming in the midst of her “year of living mindfully,” speaks candidly about her moments of doubt. She also highlights studies that speak to the mindfulness “hype” and interviews authors of one such study. It is important for students to get this view so that they understand that there has been mindfulness puffery. The film ends with the filmmaker's refusal to hype the results. She concludes that more research is necessary and also notes her subjectively improved experience as a result of her year of living mindfully.

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8.4: Weeks 5 and 6 Narrative

Weeks Five and Six Narrative

These weeks build on the Dan Harris TED Talk with a mindfulness self-compassion in-class practice. It also moves into creativity with students constructing a *cajita*, a small(ish) box containing items that represent their paths to and in the law.

The self-compassion practice introduces students to Kristin Neff, the academic who has pioneered research in self-compassion. She has a website with multiple free materials, some of which are used as homework exercises. That website can be mined for multiple exercises and other materials. The self-compassion work has universal value and may be particularly useful for law students, who can be fierce self-critics and whose stress is likely increased by the self-criticism. The exercise asks them to reflect on ways they can be more self-compassionate—and it is one of the times in which the written reflection is done but not turned in. I want them to be as open and candid with themselves as possible. To start this class, I will lead a loving-kindness mindfulness practice. A portion of that practice can be dedicated to self-compassion. It will be good to link the practice with the exercise on self-compassion. Hopefully, a general discussion on the topic will ensue.

For additional resources, mindfulness teacher Sharon Salzberg is quite well-known for loving-kindness practice. She has a website that lists her multiple books and podcasts. She also has multiple meditations on open sources that could be used in this class. Students are introduced to her in week one as she is interviewed in the mindfulness movement film.

Continuing with a self-exploration theme, in this period I borrow from a colleague who has done a *cajita* project in her mindful lawyer course. Students will move from their rational lawyer brains to their more creative side by creating a *cajita*. Building on several articles from contemplative pedagogy, and adapting them to the law school setting, class time will be spent on students making a box that contains representations of why and how they decided to go to law school and what they hope to do with their law degree. The following article could be assigned or simply used as the teacher's guide for instruction of the students on this project. https://www.laurarendon.net/wp-content/uploads/2021/06/cajitas_article_kanagala_rendon.pdf

Full disclosure: for me assigning this project—for the first time, at least—brings anxiety. The instructions are not as concrete as I'd like, I am worried about student reaction, and although I can be creative, it is not my go-to manner of expression. I am assigning it, however, for several reasons: first, my colleague who has done it says it is often the best class of the semester; second, I think it is valuable to have students get out of their law student/thinking brains—and maybe develop a habit of doing so on other occasions; and, three, as is attributed to Eleanor Roosevelt, it is good to do one thing every day that scares you. This contains enough fright for at least a week! Ultimately, I decided to lean into that fear and make this a two-class project. When looking at what I was asking of students and what I hope might come out of the project, more time seems better than less.

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8.5: Weeks 7 and 8 Narrative

Weeks Seven and Eight Narrative

These two weeks have a range of classes, from an exercise helping students to resist technology addictions to an exercise on mindful listening as a lawyering skill worth cultivating, to the consideration of a report on lawyer distress and well-being.

For the first topic, students read a short article from a bar journal now about “action addictions” and the reasons behind why we can sabotage ourselves by checking e-mail or doing other things in the name of “multi-tasking” rather than actually focusing and getting critical or time-sensitive work done. Although this is a generally applicable skill, the bar journal article sets it in the lawyer context, specifically addressing the stress of law practice. Practicing law often requires meeting deadlines—as does being a law student—so this is an obvious good skill for students to have. In this class, I will also have a guest mindfulness meditation facilitator who will lead the students in a guided meditation based on resisting technology.

Students also read from the 2017 National Task Force on Lawyer Well-Being, focusing specifically on the report’s recommendation for law schools. With ABA Accreditation Standard 508(b) requirement that law schools provide students with well-being resources, students will have experienced how their law school satisfies that standard. With that experience in mind, I ask students to craft one or two additional recommendations for law schools. The ensuing discussion should be rich and, with students’ permission, consider inviting the Dean of Students or other appropriate law administrator to be present for this discussion. The challenge to this will be to have already established a classroom environment in which the students will feel free to say no to having a class visitor. Asking them to respond anonymously may also be an option.

This period also includes a class that continues mindfulness in connection with specific lawyering skills, something to which I will return in the second half of the course. where I introduce several classes that focus on the ways in which mindfulness can enhance specific lawyering skills. One of those skills is listening. In other law school classes, there may also be a focus on this “soft” skill. However, it is certainly a skill that can withstand multiple opportunities to practice. I use one of a number of websites that have instruction and practice exercises on how to improve listening. The exercises that I have chosen include a reading on bad habits that interfere with listening and developing the skill to listen with empathy.

The last class for week eight is the student's second small group session. I will ask them to reflect on improvements and challenges that have occurred in the middle portion of the course. This class might also present a good opportunity to ask students if they need or

want to form any explicit intentions for the second part of the semester. I will also ask them to address in their small groups how some of the external course requirements are coming along. These include requirements to attend several lawyer-based online meditation practices; these requirements are intended to allow students to have at their disposal multiple practice resources after the class is over. If they have already experimented and found good resources, the hope is that they will choose to continue with these after the class ends. Thus, there need not be an interregnum where they are searching for the right practices.

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8.6: Weeks 9 and 10 Narrative

Weeks Nine and Ten Narrative

This period continues the students' consideration of how they might use mindfulness as they develop lawyering skills and values. Further, they consider whether, as posed by some, mindfulness could be an impediment to a lawyer's ability to be a zealous advocate.

These two weeks also see students return to the reading of multiple law review articles. Although I have tried to select articles that are on the shorter side, or assign only portions of articles, the law review readings are not spaced throughout the semester as evenly as might be desirable. This is, at least in part, the product of several considerations. For this course, I chose to front load student exposure to mindfulness pioneers who have developed and studied some of the science as well as to multiple mindfulness techniques and practices. Also embedded early in the course are a plethora of resources that will be helpful to students as they develop their mindfulness practice. Lastly, the first part of the semester also strives to be sure that students understand the extent of the distress within the legal community and the potential benefits of mindfulness to counteract that distress.

The second part of the semester is more heavily weighted to mindfulness as it intersects with the skills and ethics of lawyers. Naturally, therefore, the second part of the semester has more law review articles by law professor proponents of mindfulness in law practice.

Students start with considering whether mindfulness can help achieve a more open mind and, if so, whether that is a virtue for a lawyer. In the reading for this class, the students will ponder whether mindfulness and any resulting tendency to increased open mindedness, are important components to culturally competent lawyering.

Travelling from open mindedness, students go on to consider the interplay between mindfulness and negotiation and mindfulness and ethical lawyering. These two topics –negotiation and ethics—comprise the most extensive academic legal literature on mindfulness and law practice. Indeed, there are entire courses on exclusively mindfulness and ethics or mindfulness and negotiation. Thus, anyone teaching this class has multiple resources from which to pull material for students. In making some hard choices here, I defaulted to my commitment that, for this course, shorter is better. We know, intuitively, that longer, denser readings do not necessarily make for better student comprehension and learning.

Students are also asked to consider the critique that mindfulness will, should, perhaps must, guide the practitioner to interconnectedness with other beings. And that interconnectedness, the theory continues, will cause lawyers to be less zealous on their clients' behalf out of concern of inflicting detriment upon the opposing side. Students read two articles debating this viewpoint and are asked to come to class prepared to articulate their position. It promises to be interesting. And perhaps more importantly, it requires students to consider a core criticism of mindfulness and lawyering: asking, to borrow the phraseology of a law review article that the students are reading, “can saints negotiate”?

Ending this module, students will take a step back and look at legal education through a slightly broader lens. They read an article by Rhonda Magee, a very early proponent of mindfulness and legal education, now prominent on national and international scale. Magee discusses some of the changes in legal education that move away from traditional Langdellian casebook/Socratic method modes of teaching into a more “contemplative” sphere. The path of the change that Magee hopefully forecasts is uncertain, but the article seems well poised to have students contemplate possible benefits of some newer and different ways to learn the law.

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8.7: Weeks 11 and 12

Weeks Eleven and Twelve Narrative

A variety of topics and instructional methods populate this penultimate section. Students read an article that suggests the value of skillful mindfulness when working with emotions—with examples straight out of law practice and law school clinics—and they are asked to practice the techniques discussed in the article.

Students also continue to explore external resources for finding mindfulness meditations. One class assignment is for students to explore a specific set of external mindfulness meditation. They are asked to go beyond simply trying them out and to reflect with some specificity which ones they liked and why. At this point in the semester, students will have done dozens of mindfulness practices; it will be instructive for them to see, with some experience under their belt, what kinds of practices they are selecting. As students look towards the end of the semester and beyond, it is important that they are developing a good sense of what practices work for them and what practices are less effective. This class provides a mindfulness practice container. The goal is to sufficiently ingrain the practice so that they continue beyond when the class structure ends.

Students also have an additional assignment featuring Rhonda Magee, this time a video from an interview with the charity Action for Happiness. In this 60-minute video, Rhonda leads several short practices, including a couple of micro-practices that are very useful to have handy for law students, lawyers, or just plain old human beings. I use this video as a jumping-off point for students to think about their professional identity development and how being a practitioner of mindfulness can shape that in positive ways.

Initially, I had not planned to put both of the teaching modules involving Rhonda so close together. However, between the multiple goals of the syllabus, the resultant sequencing of classes to achieve those goals, and accommodating guest speaker schedules, it fell this way. It may turn out, though, to be of benefit to students to have read a piece by Rhonda that discusses contemplative law school practices and then within a short period of time watch her in this video and be led by her in a couple of practices. I share with the students that Professor Magee was my introduction into the notion of mindfulness having a place in legal education. There are multiple open source materials involving Rhonda; I just happened to like these two.

Week 12 ends with the final small group discussions among students. I scheduled these small group discussions so that they occur at the end of every four weeks. It would also be possible, depending on the time available for class and the goals of coverage, to skip this final small group session since the very last class, just two weeks from this particular class, is an end-of-semester reflection. The difference, of course, is that the end-of-semester

reflection is for the entire class, whereas these sessions are just for groups of three or four that have already met together twice. This is a call that could be made at a midpoint in any given semester.

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8.8: Weeks 13 and 14

Weeks Thirteen and Fourteen Narrative

As I mentioned in the introduction, I left open two class sessions to be developed as the semester goes on. These two classes fall in Week Thirteen although they could easily have been placed at an earlier point in the semester

Possible class topics could include topics specifically suggested by students or that arise organically during the term. Further, the current syllabus does not have a specific class dedicated to gratitude, which could be a valuable addition. Although gratitude will come up in several practices, a specific class devoted to it would add value. Brother David Steindl-Rast, well known as a proponent of gratitude, has a lovely five-minute video entitled A Good Day. https://www.youtube.com/watch?v=-Gm-G_4c5a8. His website is replete with good resources. <https://grateful.org/brother-david/>. And that I get to mention a website of a 98-year-old Benedictine monk seems to me to be marvelous wonder in and of itself!

Another possibly for the open classes is to have mid-semester meetings with individual students, which could lead to the cancelling of a class. Or the class could be structured as a mini-retreat in which the entirety of class time could be used to do several practices.

For the last week of the class, I start out with students taking a short trip to our campus's labyrinth. I placed this towards the end of the semester largely because I am hoping for warmish weather towards the end of April in Massachusetts! For institutions that do not have a labyrinth, there is a good resource for labyrinths in higher education institutions. See: <https://veriditas.org/higher-ed-initiative>.

Prior to this labyrinth walk, I will have students do some reading on labyrinths and will have already facilitate walking meditations as a part of class practice. Also, some of the external resources that I distribute also have guided walking meditations.

The very last session of the semester will be a class-long reflection. Students will have written a reflection paper longer than their usual reflection papers, one in which they look back at what they've learned from the semester and what they hope to take forward. I had contemplated asking students to do a personal mindfulness plan to help them continue with the practice going forward. Although I chose not to do that, it is an option to consider. I also will have this session involve food, as that's generally a fun and connective way to end a seminar, especially one in which students have shared many personal experiences.

A longer paper—perhaps one that involves research into various mindfulness topics—would certainly also be a possibility for this course.

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Index

D

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Glossary

Sample Word 1 | Sample Definition 1

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 - [Assignments Weeks 11 - 14](#) - [CC BY 4.0](#)
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